

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Suzanne Donnelly	Team: Team # 2	CCRB Case #: 200513092	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 10/31/2005 9:30 PM	Location of Incident: § 87(2)(b) and the 69th Precinct	18 Mo. SOL 4/30/2007	Precinct: 69		
Date/Time CV Reported Mon, 10/31/2005 10:30 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Mon, 10/31/2005 11:12 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Patrick Smith	29672	931998	069 PCT
2. POM Brian Mchenry	31146	931821	069 PCT
3. LT Dennis Ferber	00000	895430	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Craig Rorro	03180	932091	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Dennis Ferber	Abuse: Lt. Dennis Ferber stopped and questioned § 87(2)(b)	A . Exonerated
B . POM Patrick Smith	Abuse: Patrick Smith stopped and questioned § 87(2)(b)	B . Exonerated
C . POM Brian Mchenry	Abuse: Brian Mchenry stopped and questioned § 87(2)(b)	C . Exonerated
D . POM Patrick Smith	Abuse: Patrick Smith searched § 87(2)(b)	D . Exonerated
E . POM Patrick Smith	Abuse: Patrick Smith threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . POM Patrick Smith	Discourtesy: Patrick Smith acted rudely toward § 87(2)(b)	F . Unsubstantiated
G . POM Patrick Smith	Discourtesy: Patrick Smith spoke obscenely and/or rudely to § 87(2)(b)	G . Unsubstantiated

Synopsis

On October 31, 2005, § 87(2)(b) went to the 69th Precinct upon learning that his son § 87(2)(b) had been arrested. Lt. Dennis Ferber stopped and questioned § 87(2)(b) (Allegation A) at approximately 6:30pm because he observed § 87(2)(b) and his friends throwing eggs and wearing masks. PO Patrick Smith and PO Brian McHenry stopped § 87(2)(b) a second time (Allegations B and C) regarding the mask he was wearing. They also asked him for identification. § 87(2)(b) did not produce identification because he did not have any. PO Smith instructed § 87(2)(b) to get against the patrol car. § 87(2)(b) complied, and PO Smith began searching § 87(2)(b)'s pockets (Allegation D). He retrieved a credit card from § 87(2)(b)'s back left pocket of his pants. § 87(2)(b) told PO Smith that he had found the credit card earlier about a block away between § 87(2)(b) and § 87(2)(b) in the grass. PO Smith proceeded to handcuff § 87(2)(b) and place him into the patrol car. As § 87(2)(b) was being transported to the 69th Precinct, PO Smith told § 87(2)(b) that he, "Better start telling the truth before I punch you in the face" (Allegation E). § 87(2)(b)'s arrest was processed at the 69th Precinct and he was later taken to central booking. He was arrested for § 87(2)(b). After being informed that his son had been arrested, § 87(2)(b) arrived at the 69th Precinct. While he was there, he got into a verbal altercation with PO Patrick Smith. During their interaction, PO Smith spit in § 87(2)(b)'s direction (Allegation F) and instructed him to, "Get the fuck off my porch" (Allegation G). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that Allegations A, B, C, and D be closed as exonerated. § 87(2)(g) , it is recommended that Allegations E and F and G be closed as unsubstantiated.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) black male § 87(2)(b) filed a civilian complaint (Encl. 10A-B) against PO Patrick Smith at the 69th Precinct on October 31, 2005 at 10:30pm with Desk Sgt. Craig Rorro. In his complaint, § 87(2)(b) stated that he had come to the 69th Precinct regarding his son, § 87(2)(b) who had been arrested earlier that evening. Sgt. Rorro called IAB (Log # 05-32497; Encl. 11A-B) to report this complaint, and it was referred to the CCRB (Encl. 12A-B) later that evening. On November 7, 2005, § 87(2)(b) was contacted. He reiterated his complaint. Mediation and investigation were explained to § 87(2)(b) and he chose to have his complaint investigated. § 87(2)(b) arrived at the CCRB on November 13, 2005 with his son § 87(2)(b). At this time, the CCRB became aware of other allegations made by § 87(2)(b) during his arrest on October 31, 2005. Both individuals were interviewed (Encl. 13A-E and Encl. 15A-D) at the CCRB on November 13, 2005.

§ 87(2)(b) a § 87(2)(b) black male, § 87(2)(b) § 87(2)(b) stated that on October 31, 2005 at approximately 6:30pm, he was walking on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn with three of his friends: § 87(2)(b) and § 87(2)(b). He was wearing a black ski mask. § 87(2)(b) denied having eggs in his possession, and he denied throwing eggs at any point. He was not carrying anything in his hands when officers stopped him. As he and his friends were walking on the sidewalk, a gray unmarked vehicle pulled up alongside them. PO 1 (identified during the course of this investigation as Lt. Dennis Ferber) exited the vehicle and requested that § 87(2)(b) remove his mask. § 87(2)(b) complied. Lt. Ferber told § 87(2)(b) "I hope you don't have any eggs," to § 87(2)(b) and his friends, and they assured him that they did not. Lt. Ferber then asked § 87(2)(b) if he was trick-or-treating, and § 87(2)(b) said that he was. Lt. Ferber got back into his vehicle and proceeded to drive away.

§ 87(2)(b) described Lt. Ferber as a tall built white male, 35-45 years of age, in uniform with a white shirt, in a gray unmarked vehicle. Seconds later, an unmarked black vehicle pulled up alongside § 87(2)(b) and his friends. PO 2 and PO 3 (identified through the investigation as PO Patrick Smith and PO

Brian McHenry) called to § 87(2)(b) and asked him to stop. One officer stated, “Didn’t that officer just tell you to take that mask off?” They also accused § 87(2)(b) and his friends of throwing eggs. PO Smith asked § 87(2)(b) for his identification two times. § 87(2)(b) did not produce any identification because he did not have any with him. PO Smith instructed § 87(2)(b) to lean against the unmarked vehicle the officers had arrived in, and § 87(2)(b) complied with this instruction. PO Smith then began to search § 87(2)(b)’s pockets. During the search, PO Smith recovered a credit card from § 87(2)(b)’s back left pants pocket. § 87(2)(b) told PO Smith that he had just found the credit card a block away, between § 87(2)(b) and § 87(2)(b) in the grass. PO Smith asked § 87(2)(b) if he had gotten the credit card from his mother, and § 87(2)(b) said no and told him that he had just found it and had never used it. Once § 87(2)(b) was searched, PO Smith placed him into handcuffs. § 87(2)(b) stated that his friends were also stopped with him, but they were neither asked for identification nor searched by any officer. PO Smith asked § 87(2)(b) which friend he trusted to call his mother, and § 87(2)(b) told § 87(2)(b) to call his mother.

After being placed into handcuffs, § 87(2)(b) was placed into PO Smith and PO McHenry’s vehicle. He stated that he did not resist in any way. § 87(2)(b) stated that the boys then left and continued trick-or-treating, and he was the only individual transported to the 69th Precinct. On the way to the Precinct and about a block away from the Precinct, PO Smith (also the driver of the vehicle) told § 87(2)(b) “You better start telling the truth before I punch you in the face.” § 87(2)(b) insisted to PO Smith that he was telling the truth.

Once they had arrived at the Precinct, PO McHenry fingerprinted § 87(2)(b). § 87(2)(b) could hear his father at the Precinct but the two did not speak to one another. § 87(2)(b) was held at the Precinct for about four hours. While he was waiting, PO Smith apologized for yelling at him earlier. He told § 87(2)(b) that he was, “A little pissed off at what you had in your possession.” § 87(2)(b) was taken to central booking from the Precinct, where he remained overnight.

§ 87(2)(b) cousin heard from individuals in the neighborhood that he had been arrested in Canarsie and contacted § 87(2)(b) on his two-way pager. § 87(2)(b) arrived at the 69th Precinct at approximately 9:30pm on October 31, 2005 after being informed that § 87(2)(b) had been transported there. It was there that § 87(2)(b) encountered PO Patrick Smith and subsequently filed a Civilian Complaint with Desk Sgt. Rorro as a result of this encounter. In his complaint, § 87(2)(b) stated that he arrived at the 69th Precinct upon learning of § 87(2)(b)’s arrest. PO Smith told § 87(2)(b) that § 87(2)(b) had been arrested for walking in the street with a mask on, and because he was not trick-or-treating, he could not wear the mask. § 87(2)(b) asked the officer how many white kids were also wearing masks. When PO Smith stated that he did not know, § 87(2)(b) told him that he had seen several white children on the street wearing masks and called PO Smith a racist. He stated that PO Smith was profiling black kids in the neighborhood. After § 87(2)(b) called PO Smith a racist, he walked down the steps of the Precinct, and PO Smith spit in § 87(2)(b) direction, telling him to, “Get the fuck out of here,” and, “Get the fuck off my steps.”

During his interview at the CCRB, § 87(2)(b) stated that his son informed him that he and a few of his friends had been walking around and trick-or-treating in the vicinity of § 87(2)(b) between § 87(2)(b) and § 87(2)(b). § 87(2)(b) was wearing a mask. A Lieutenant stopped § 87(2)(b) and asked him if he was trick-or-treating. § 87(2)(b) told the Lieutenant that he was not trick-or-treating, and as a result, he was instructed to remove his mask. § 87(2)(b) complied, taking the mask off of his face and placing it around his neck. A second patrol car then arrived, and Police Officer Patrick Smith exited the vehicle and asked § 87(2)(b) if he was trick-or-treating. § 87(2)(b) told PO Smith that he was not trick-or-treating. PO Smith asked § 87(2)(b) for identification and then placed him up against a vehicle. § 87(2)(b) stated that when PO Smith asked § 87(2)(b) for identification, § 87(2)(b) did not have any and PO Smith proceeded to search § 87(2)(b)’s pockets, retrieving a credit card. § 87(2)(b) stated that § 87(2)(b) had found this credit card on the ground when he was trick-or-treating with his friends, which he was planning on turning in. § 87(2)(b) also said that § 87(2)(b) informed him that PO Smith threatened to punch him in the face about a block away from the stationhouse. § 87(2)(b) also told § 87(2)(b) that PO Smith later apologized to him, saying that he was stressed out and had not gotten enough sleep.

When § 87(2)(b) arrived at the 69th Precinct, he waited for a few minutes for the arresting officers to come out so he could speak with them about the incident. He spoke with Sergeant Craig Rorro, who was assigned to the desk at the stationhouse. He told Sgt. Rorro that he was there to see § 87(2)(b) and requested to see him, but Sgt. Rorro stated that he was not yet permitted to see his son. He then offered to speak with the arresting officer for § 87(2)(b) and told him that an officer would come out to speak with him.

PO Patrick Smith (identified by the name on his shield) approached § 87(2)(b) and asked if he was § 87(2)(b) father. PO Smith led § 87(2)(b) outside of the Precinct through the glass door and the two began talking about children wearing masks and about § 87(2)(b) throwing eggs. PO Smith told § 87(2)(b) that if children were not trick-or-treating, they could not wear masks. § 87(2)(b) told PO Smith that was strange and told him, "You must be racist or something to say something like that." § 87(2)(b) asked PO Smith: "How many white kids were walking down the street with masks on?" PO Smith said he did not know, and § 87(2)(b) told him that he had seen a lot of them. § 87(2)(b) also told PO Smith that children had been "throwing eggs for over fifty years" and asked him, "How can you stop that now?" § 87(2)(b) then noticed that PO Smith was getting "a little offended" and then asked PO Smith if he was "racially profiling kids in the black community, just pulling them over and going in their pockets." § 87(2)(b) continued, "You must be trying to cage all the black kids in jail for today." At this point, PO Smith was angry, and § 87(2)(b) again called him a racist.

§ 87(2)(b) was at the bottom of the steps, approximately ten feet away from PO Smith, who was standing at the top of the steps. § 87(2)(b) stepped back off of the stairs. As he stepped down the stairs, PO Smith turned and spit in § 87(2)(b) direction and instructed him to, "Get the fuck off the porch." § 87(2)(b) told PO Smith that he was not on the steps and said, "Well I'm looking at you right now, so spit on me now." PO Smith told § 87(2)(b) to "get the fuck out of here" and § 87(2)(b) told him that he would be back. § 87(2)(b) never yelled at PO Smith.

§ 87(2)(b) left the 69th Precinct to pick up a friend before returning there to file a report because he was cognizant of the hostility between himself and PO Smith. He picked up § 87(2)(b) and called the stationhouse as he was on his way back. He spoke with Sgt. Rorro again, who informed § 87(2)(b) that he could file a complaint over the phone or at the precinct. § 87(2)(b) believed that if he filed the complaint over the phone that it would not be taken so he opted to go to the Precinct in person. Approximately forty minutes from the time he was first at the Precinct, § 87(2)(b) returned there to file the complaint. He had no interaction with PO Smith while he was at the precinct for the second time and only spoke with Sgt. Rorro to file the complaint.

Results of Investigation

Attempts to Locate and Interview Additional Victims/Witnesses

§ 87(2)(b) and § 87(2)(b) Efforts were made to contact § 87(2)(b) and § 87(2)(b) On January 24, 2006, contact was made with the parents of both § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s mother stated that she needed to discuss the situation with § 87(2)(b)'s father, but his mailing address was obtained. § 87(2)(b)'s father stated that § 87(2)(b) was at school, but his mailing address was also obtained. On the same day, please call letters (which were not returned to the CCRB) were sent to the homes of § 87(2)(b) and § 87(2)(b) A return phone call was made by § 87(2)(b) on January 26, 2006 stating that he received the please call letter from the CCRB. Additional attempts were made to contact § 87(2)(b) and § 87(2)(b) on October 17, 2006. A voicemail was left for § 87(2)(b) § 87(2)(b)'s father stated that he would have § 87(2)(b) call the CCRB. § 87(2)(b) was unable to provide a last name or any contact information for § 87(2)(b)

Officer Statements

Lt. Dennis Ferber

Lt. Dennis Ferber was interviewed at the CCRB on October 5, 2006 (Encl. 24A-C). Lt. Ferber stated that on October 31, 2005, he was working a 1300 x 2135 tour. He was a Special Operations Lieutenant, working on a Halloween detail to prevent Halloween-related crimes such as mischief, property crimes and robberies. Lt. Ferber did not recall with whom he was working on that day. He was in uniform, and assigned to an unmarked vehicle, which he described as a black Chevy Impala. He was unsure of the vehicle number but stated that it was either 828 or 582. He was the operator of the vehicle. He did not have any entries in his memo book regarding this incident but indicated that on October 31, 2005 he was present for duty on an overtime detail (Encl. 23A-B).

Lt. Ferber stated that the incident occurred at § 87(2)(b) near § 87(2)(b). He was on patrol looking for Halloween-related crimes, when he observed three individuals throwing eggs. Lt. Ferber was not sure what the individuals were targeting with the eggs, but stated that they were throwing them down the street. One of the individuals (he could not recall which one) was carrying a knapsack with eggs in it. The individuals were also wearing masks (he could not recall what they looked like) that covered their entire faces, as well as dark clothing. Lt. Ferber stated that it is against administrative code to wear a full face mask, although there is leeway when children are trick-or-treating. He added that it was very obvious that the individuals were not trick-or-treating.

Lt. Ferber stated that he made the decision to stop the individuals. He was in his unmarked vehicle coming up the main avenue, either § 87(2)(b) and the individuals were standing on § 87(2)(b). Lt. Ferber could see the individuals but they could not see his unmarked vehicle, because it was approaching from behind them. Lt. Ferber pulled up behind the individuals. He exited the vehicle with the officer whom he was with. Lt. Ferber believed that he spoke to the individuals first, asking them for an explanation for their behavior and for identification. The individuals told Lt. Ferber that they were trick-or-treating. Lt. Ferber told the individuals that they could not wear the masks and instructed them to stop throwing eggs. The individuals complied, removing their masks. They admitted throwing eggs only after it was discovered that they were carrying eggs in a knapsack. Lt. Ferber stated that at this point, the three individuals could have been placed under arrest. Initially, he was going to either admonish the individuals or issue them disorderly conduct summonses.

PO Patrick Smith and PO Brian McHenry approached the location just after Lt. Ferber had stopped the individuals. Lt. Ferber was still there when the officers arrived. He stated that PO Smith and PO McHenry must have seen him making the stop, because he did not put out any radio transmissions. Lt. Ferber explained to PO Smith and PO McHenry that he had stopped the individuals for throwing eggs. PO Smith and PO McHenry then took over the stop for Lt. Ferber upon their arrival. Lt. Ferber did not believe that PO Smith or PO McHenry saw § 87(2)(b) and the other individuals throwing eggs because they had already been stopped at this point. PO Smith was going to fill out a 250 or issue summonses when he discovered that § 87(2)(b) was in possession of a stolen credit card. § 87(2)(b) was asked for identification, but he was not sure by whom. § 87(2)(b) produced some sort of identification and reluctantly produced the credit card himself. PO Smith told Lt. Ferber about stolen credit card, and § 87(2)(b) could not provide an explanation for having a credit card in someone else's name. Once it was determined that § 87(2)(b) was in possession of a credit card that was not his, Lt. Ferber instructed PO Smith to bring § 87(2)(b) back to the Precinct to investigate the credit card. There, officers could call the credit card company as well as check a complaint database to see if the individual whose name was on the card had reported a lost or stolen card. Lt. Ferber told PO Smith that if the credit card did not turn out to be stolen, § 87(2)(b) should be released with a disorderly conduct summons. If the credit card turned out to be stolen, § 87(2)(b) would be charged accordingly.

Lt. Ferber did not observe § 87(2)(b) being handcuffed, frisked, or searched at any point. Lt. Ferber stated that there were no officers besides PO Smith and PO McHenry at the location. He had no further interaction with § 87(2)(b) he continued his patrol five to ten minutes after he had stopped § 87(2)(b) and the individuals. PO Smith and PO McHenry transported § 87(2)(b) to the 69th location shortly after Lt. Ferber left. Lt. Ferber recalled asking PO Smith what the outcome of the situation was later that evening. PO Smith informed him that the credit card was, in fact, stolen. At no point did Lt. Ferber interact with § 87(2)(b). Lt. Ferber reviewed the roll call, but he still could not recall with whom he was working.

He was not on the roll call because he was working an overtime detail for Halloween, and therefore, his vehicle number was not listed.

PO Brian McHenry

PO Brian McHenry was interviewed at the CCRB twice: once (Encl. 18A-B) on February 21, 2006 and a second time (Encl. 19A-B) on May 24, 2006. PO McHenry stated that on October 31, 2005, he was working a 1730 x 0205 with PO Patrick Smith. He was in uniform and assigned to an unmarked vehicle, which he described as a black Chevy Impala. PO McHenry was the recorder, and PO Smith was the operator. PO McHenry stated that there was another similar vehicle patrolling the area but he could not recall the officers who were assigned to that vehicle. PO McHenry's memo book entry (Encl. 17A-C) regarding this incident stated that at 1932, one male was observed throwing eggs and was stopped at § 87(2)(b) in Brooklyn. The individual was also in possession of a stolen credit card.

PO McHenry stated that the other unmarked vehicle approached § 87(2)(b) first and he did not observe this stop. A lieutenant, whom he later identified as Lt. Dennis Ferber, informed PO McHenry that the other patrol car had instructed § 87(2)(b) and his friends to leave the vicinity. § 87(2)(b) continued to linger around after he was stopped once, and PO McHenry and PO Smith stopped him again. § 87(2)(b) was with one or two other individuals. PO McHenry stated that § 87(2)(b) was in possession of eggs, but he did not observe him throwing the eggs. The officers' vehicle was next to § 87(2)(b) and they proceeded to exit the vehicle.

PO McHenry and PO Smith asked § 87(2)(b) what he was doing in possession of eggs. § 87(2)(b) offered no explanation as to why he had the eggs. The officers then asked § 87(2)(b) and his friends for identification. PO McHenry stated that the individuals § 87(2)(b) was with produced identification. § 87(2)(b) did not provide his identification, but he produced a credit card for the officers. PO McHenry could not recall the name on the credit card.

PO McHenry stated that § 87(2)(b) was not searched prior to his arrest. He denied § 87(2)(b) allegation that he was placed against the unmarked vehicle and searched, and asserted that § 87(2)(b) voluntarily produced the credit card, which was later determined as being stolen. § 87(2)(b) friends were neither searched nor arrested. PO McHenry could not recall who had placed § 87(2)(b) into handcuffs or who transported him to the Precinct. Lt. Ferber was present at the location during this time, but PO McHenry was uncertain if he was within earshot. PO McHenry stated that he was not discourteous to § 87(2)(b) nor did he ever threaten § 87(2)(b) with the use of force or state that he would punch him in the face if he did not start telling the truth. PO McHenry did not hear PO Smith say this to § 87(2)(b) either.

PO McHenry stated that he was at the location for approximately 15 minutes. He could not recall if other officers had any interaction with § 87(2)(b). He recalled that § 87(2)(b)'s demeanor was calm throughout the incident. PO McHenry recalled § 87(2)(b) being at the Precinct but stated that he had no interaction with him; further he could not recall which officer spoke with § 87(2)(b) at the Precinct. PO McHenry could not recall if a stop and frisk report was prepared for § 87(2)(b). He stated that the arrest report indicated that § 87(2)(b) was throwing eggs because Lt. Ferber had observed him doing so.

PO Patrick Smith

PO Patrick Smith was interviewed at the CCRB on February 24, 2006 (Encl. 20A-B). He stated that on October 31, 2005, he was working an 8pm – 4am Conditions. He was in uniform and in an unmarked black Impala. He had no entries in his memo book regarding this incident.

PO Smith stated that he and PO McHenry stopped § 87(2)(b) for being in possession of eggs and wearing a mask on Halloween night. He recalled § 87(2)(b) standing on the corner with the mask on and speaking with his friends, but he could not recall how many friends § 87(2)(b) was with. He recalled that some of them were also wearing masks. PO Smith could not recall whose decision it was to make the stop, nor could he recall who initially approached § 87(2)(b). Both officers exited the vehicle and asked § 87(2)(b) to remove his mask, and § 87(2)(b) complied. PO Smith asked § 87(2)(b) if he was carrying anything "dumb" and § 87(2)(b) told PO Smith that he had eggs. PO Smith recalled that § 87(2)(b) was

carrying a small carton of eggs in his pocket. At no point did PO Smith observe § 87(2)(b) throwing eggs. The officers asked § 87(2)(b) for identification, but he did not have identification. PO Smith stated that § 87(2)(b) did not produce this credit card; rather, it was retrieved once § 87(2)(b) was placed into handcuffs. PO Smith could not recall who placed § 87(2)(b) into handcuffs. PO Smith recalled PO McHenry frisking and searching § 87(2)(b) and this was when the credit card was obtained. § 87(2)(b) was placed into the vehicle and transported to the Precinct. His friends were not transported with him.

PO Smith and PO McHenry transported § 87(2)(b) to the 69th Precinct. PO Smith stated that at no point did PO McHenry threaten to punch § 87(2)(b) in the face. § 87(2)(b) was placed under arrest and put through the system.

When § 87(2)(b) arrived at the Precinct after § 87(2)(b) had been taken there, he was “belligerent” and was asked to leave the precinct after a few minutes. PO Smith could not recall who had asked § 87(2)(b) to leave the Precinct. He stated that he was outside of the stationhouse smoking a cigarette when § 87(2)(b) returned and called the officers, “crackers,” “white devils,” and “racist pigs.” He stated that at no point did he spit toward § 87(2)(b) or tell § 87(2)(b) to “get the fuck off the porch.”

Sgt. Craig Rorro

Sgt. Craig Rorro was interviewed at the CCRB on September 5, 2006 (Encl. 22A-B). On October 31, 2005, Sgt. Rorro worked a 1450 x 2347 and was assigned to the desk at the 69th Precinct. He was in uniform.

Sgt. Rorro stated that he could not recall anything regarding the incident involving § 87(2)(b). He could not recall the arrest of § 87(2)(b). He had an entry in his memo book (Encl. 21A-B) for October 31, 2005, indicating that he was assigned to the desk on that day but he did not have anything written regarding this specific incident.

When shown the Civilian Complaint Report that Sgt. Rorro took at 9:30pm at the 69th Precinct from § 87(2)(b), Sgt. Rorro confirmed that he had taken the complaint but did not recall the details of the incident. The incident was further described to Sgt. Rorro, but he still was unable to recall any specifics regarding § 87(2)(b) or his arrest and arrest processing. He also had no recollection of § 87(2)(b) or § 87(2)(b) demeanor or interaction with officers at the stationhouse. He did not recall any other officers who may have been present or working at the stationhouse that day other than PO Patrick Smith, whose name was on the complaint report.

Sgt. Rorro stated that where the desk officer sits, there are double doors to the right that lead outside; therefore, he would not have been able to see anything that may have transpired outside of the stationhouse.

Additional Officer Interviews

In § 87(2)(b) CCRB statement, he did not make any mention of a second officer in the first vehicle that stopped him. When Lt. Ferber provided a statement at the CCRB, he could not recall with whom he was working, nor could he identify this from the roll call. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Police Documentation

69th Precinct Roll Call/ARCS

The Tour 3 roll call and ARCS for October 31, 2005 (Encl. 25A-C and 26A-E) revealed that Sgt. Craig Rorro was assigned to the desk. It also showed that PO Brian McHenry and PO Patrick Smith were assigned to conditions and vehicle #8352. Lt. Dennis Ferber did not appear on the roll call, but his memo book indicated that on the date of the incident, he was present for duty for an overtime detail. He recalled working that day, and PO McHenry also stated that he was present at the location on that day.

OLBS & BADS Reports

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

Command Log

The command log (31A-C) for § 87(2)(b) arrest documents at 19:50 that he was arrested at 19:32 at § 87(2)(b) (though arrest report indicates § 87(2)(b)). The arresting officer was PO Brian McHenry, who was assigned to vehicle #8352. § 87(2)(b) was charged with § 87(2)(b). His condition appeared normal. § 87(2)(b) mother, § 87(2)(b), was notified of § 87(2)(b)'s arrest.

The command log at 22:10 documents § 87(2)(b) arrival at the 69th Precinct. It states that § 87(2)(b) a § 87(2)(b) black male of § 87(2)(b) was present at the 69th Precinct to file a CCRB against PO Smith.

Stop, Question, and Frisk Index

There was no stop, question, and frisk report prepared for § 87(2)(b) or § 87(2)(b) (Encl. 27A-C).

Prisoner Holding Pen Roster

The Prisoner Holding Pen Roster (Encl. 30A) indicates that § 87(2)(b) was transported to Bronx Central Booking in RMP #8352 and was being guarded by PO McHenry.

Communication Records

Communication records (Encl. 32A) indicate that at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) a crime was reported and an arrest was verified at 19:32. No other officers responded to the location.

Status of the Criminal Charges

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

CCRB Histories

Officers

Lt. Dennis Ferber's CCRB history (Encl. 5-C) shows that he has been a member of the NYPD for seventeen years. He has had two substantiated complaints from 1993 (Case #9301460) for gun pointed and discourtesy, and it was recommended that he receive charges. The NYPD has no disposition for this case. A review of PO Brian McHenry's CCRB history (Encl. 6A) indicates that he has been a member of the NYPD for four years and has one substantiated CCRB complaint (Case # 200506487) for refusing to provide his name/shield. It was recommended that he receive command discipline, and he received instructions from the NYPD. PO Patrick Smith has also been a member of the NYPD for four years. His history (Encl. 7A) shows that he has two substantiated CCRB complaints for a vehicle search and a discourtesy word (Case # 200512451). It was recommended that he be brought up on charges, but at the present time, there is no NYPD disposition for this case.

Civilians

These are the first CCRB complaints filed by § 87(2)(b) and § 87(2)(b) (Encl. 8A and 9A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification

These officers were identified using police documents, as well as CTS, and the officers' CCRB statements. PO Brian McHenry was identified from § 87(2)(b) arrest report and from the command log. PO Patrick Smith was assigned to vehicle #8352 along with PO McHenry on the 69th Precinct's roll call. PO McHenry identified Lt. Dennis Ferber as being present at the location in his CCRB statement, and Lt. Ferber confirmed his role in the incident in his own CCRB statement. § 87(2)(g)

§ 87(2)(b) described PO Smith as a uniformed white male with black spiked hair, approximately 30 years old and the operator of the vehicle. § 87(2)(b) recalled PO McHenry as being a uniformed white male, nearly bald, and older than PO Smith. Both of these officers were in a black undercover vehicle. Photos ordered confirm that these officers have been accurately identified, according to the physical descriptions that § 87(2)(b) provided.

§ 87(2)(b) identified PO Patrick Smith at the 69th Precinct because he read his name from his shield. PO Smith also acknowledged his interaction with § 87(2)(b) at the 69th Precinct subsequent to § 87(2)(b) arrest.

Undisputed Facts

It is not in dispute that on October 31, 2005, § 87(2)(b) was stopped and questioned by Lt. Dennis Ferber, PO Brian McHenry and PO Patrick Smith, he was arrested in the vicinity of § 87(2)(b), or that his father § 87(2)(b) interacted with PO Patrick Smith at the 69th Precinct. § 87(2)(g)

Credibility Assessment

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b)

There were no allegations made by or on the behalf of § 87(2)(b) until he arrived at the CCRB with his father, who was making his statement nearly two weeks after the incident occurred. § 87(2)(b) was also contacted over the phone (Encl. 16A) and briefly answered a few follow-up questions. § 87(2)(g) in his sworn statement, he recalled that Lt. Ferber asked him if he was trick-or-treating, whereas in his subsequent telephone statement, he stated that Lt. Ferber told him, “I hope you don’t have any eggs.” Other than this very brief telephone statement, there are no other statements that can be compared to § 87(2)(b) CCRB statement.

§ 87(2)(g)

Lt. Dennis Ferber, PO Brian McHenry, PO Patrick Smith, and Sgt. Craig Rorro

§ 87(2)(g)

Allegations

Allegation A: Abuse of Authority—Lt. Dennis Ferber stopped and questioned § 87(2)(b)

Allegation B: Abuse of Authority—PO Brian McHenry stopped and questioned § 87(2)(b)

Allegation C: Abuse of Authority—PO Patrick Smith stopped and questioned § 87(2)(b)

§ 87(2)(b) did not believe that officers had a legitimate reason for stopping him. Lt. Ferber told him, “I hope you don’t have eggs,” but § 87(2)(b) stated that he did not have any eggs in his possession and denied throwing eggs. He stated that he was stopped because he was wearing a mask, which he removed upon request.

Lt. Ferber stated that he had observed § 87(2)(b) and two of his friends throwing eggs down the street. It was later discovered that a knapsack that one of the boys was carrying did in fact contain eggs. According to Patrol Guide Procedure 212-11 (Encl. 1A), an officer can “stop person and request identification and explanation of conduct” if he/she “reasonably suspects a person has committed, is committing or is about to commit a felony or a Penal Law misdemeanor.” This is reiterated in Criminal Procedure Law 140.50 (Encl. 2A). § 87(2)(g)

Furthermore, Lt. Ferber also explained that the three were wearing masks that covered their entire faces and were dressed in dark clothing. He stated that it is “against administrative code to wear a full face mask,” and “although there is leeway when children are trick-or-treating... it was very obvious that they were not trick-or-treating.” New York Penal Law 240.35 (Encl. 3A) § 87(2)(g) declaring that a person is guilty of loitering, a violation, when he/she is, “masked or in any manner disguised by unusual or unnatural attire or facial alteration, loiters, remains or congregates in a public place with other persons so masked or disguised.” This conduct is “not unlawful when it occurs in connection with a masquerade party or like entertainment if... permission is first obtained from the police or other appropriate authorities.”

§ 87(2)(g)
, it is therefore recommended that Allegation A be closed as exonerated.

PO McHenry and PO Smith stopped § 87(2)(b) a second time, subsequent to the stop by Lt. Ferber. One of them asked § 87(2)(b) “Didn’t that officer just tell you to take that mask off?” They also accused § 87(2)(b) and his friends of throwing eggs, though § 87(2)(b) denied doing so. § 87(2)(g)

PO McHenry stated that though he did not observe the first stop or § 87(2)(b) throwing eggs, Lt. Ferber had informed him that § 87(2)(b) was throwing eggs. (Lt. Ferber agreed, stating that he had informed PO McHenry and PO Smith about the situation.) § 87(2)(g)

PO Smith did not mention Lt. Ferber’s initial stop in his statement and stated that he did not observe § 87(2)(b) throwing eggs, he asserted that he and PO McHenry stopped § 87(2)(b) and his friends for having eggs in their possession and for wearing masks on Halloween night. § 87(2)(g)

It is therefore recommended that Allegations B and C be closed as exonerated.

Allegation D: Abuse of Authority—PO Patrick Smith searched § 87(2)(b)

§ 87(2)(b) alleged that he was placed up against the patrol car and searched by PO Smith prior to being handcuffed. During this search, PO Smith retrieved the credit card from § 87(2)(b) back left pant pocket. PO Smith then handcuffed § 87(2)(b) and placed him into the patrol car.

PO McHenry denied that § 87(2)(b) was searched prior to his arrest. Lt. Ferber also stated that he did not see § 87(2)(b) frisked or searched at the location, although officers may have checked the knapsack the individuals were carrying for more eggs. PO Smith stated that he believed PO McHenry searched § 87(2)(b) but he recalled that § 87(2)(b) was searched subsequent to being handcuffed and placed under arrest. § 87(2)(g)

Patrol Guide Procedure 208-05 states that a frisk/field search, “should be conducted before or immediately after the subject is rear handcuffed, depending on particular circumstances” (Encl. 4A-4B). § 87(2)(g)

§ 87(2)(g)
It is therefore recommended that Allegation D be closed as exonerated.

Allegation E: Abuse of Authority—PO Patrick Smith threatened § 87(2)(b) with the use of physical force.

§ 87(2)(b) alleged that during his transport to the 69th Precinct, PO Smith demanded, “You better start telling the truth before I punch you in the face.” He believed that PO Smith was referring to him telling the truth about his age, the mask, the eggs, and the credit card.

Lt. Ferber, PO McHenry, and PO Smith unanimously denied that § 87(2)(b) was ever told that he would be punched in the face or ever threatened with the use of physical force. § 87(2)(g)

§ 87(2)(b). *It is therefore recommended that Allegation E be closed as unsubstantiated.*

Allegation F: Discourtesy—PO Patrick Smith acted rudely toward § 87(2)(b)

Allegation G: Discourtesy—PO Patrick Smith spoke obscenely and/or rudely to § 87(2)(b)

Upon his arrival at the 69th Precinct, § 87(2)(b) interacted with PO Smith, whom he alleged spit in his direction outside of the Precinct and instructed him to, “Get the fuck off the steps,” or, “Get the fuck off the porch.”

In his CCRB statement, PO Smith denied that he spit toward § 87(2)(b) or used obscene language toward him. PO McHenry and Lt. Ferber were not present or informed of PO Smith’s interaction with § 87(2)(b). Sgt. Rorro also stated that he was unaware of any interaction that may have occurred between § 87(2)(b) and PO Smith. He added that if something had happened on the stairs outside of the 69th Precinct, he would not have been able to see this happen due to the location of the desk at the Precinct. § 87(2)(g)

§ 87(2)(b). *It is therefore recommended that Allegation F and Allegation G be closed as unsubstantiated.*

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: